

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE SOLOMON ISLANDS

Complete Community Opposition How-To

This guide is built around the Solomon Islands' distinctive lever — customary land and the right to genuine, free, prior, and informed consent — and it names the tools you'll meet (customary land, FPIC, the environmental impact statement, the Environmental Advisory Committee, the Public Solicitor and legal aid, the courts) in plain words the first time. The central problem here is not missing laws but unenforced ones, so much of the fight is forcing the existing law to work.

INTRODUCTION & FRAMEWORK

On **Wagina Island** — a remote place of some two thousand people in Choiseul Province, who live by fishing, seaweed farming, and their gardens — a company owned out of Hong Kong, **Solomon Bauxite Limited**, held government approval to dig an open-pit bauxite mine that would have swallowed **sixty percent of the island**, cleared two thousand hectares of forest, and run a hundred and fifty truckloads a day for twenty years, destroying the land, the rivers, and the sea the community lived on. The people of Wagina refused. They fought from 2013, and with the help of legal aid from the **Public Solicitor's office** and an environmental legal team, they brought their case to the country's **Environmental Advisory Committee**. In 2019, for the first time in the nation's history, that committee **revoked the company's development consent** — because the company had never obtained the community's **genuine consent**, and had hidden its environmental impact statement from the people it would affect. When the company appealed, the appeal was dismissed. A small island had beaten a foreign mining company and its own government's approval.

The people of Wagina, with legal aid from the Public Solicitor's office, beat a foreign bauxite miner with a toolkit whose decisive lever is customary land and the right to genuine consent. The great majority of Solomon Islands land is held under **custom** by its people, and a project needs their **free, prior, and informed consent (FPIC)** — so a project that never truly won the community's agreement, or that hid its impacts, is legally and morally vulnerable, as Wagina proved when the **Environmental Advisory Committee** revoked the consent. A project needs an **environmental impact statement** and consent, reviewable by that committee. The **Public Solicitor** and environmental legal teams provide **legal aid**. And the **courts** hear appeals; protest, petition, and litigation are lawful. FPIC is not a foreign import but the natural legal expression of a society where land is held by its people under custom — a company cannot lawfully proceed on a government licence alone; it must win the genuine agreement of the people whose land it is. But these tools have real limits, and this guide states them plainly. The Solomons' central problem is not the absence of laws but their **non-enforcement**, and above all the **corruption of the logging and mining industries** — licences granted on a single staged meeting, consent faked, chiefs and landowners divided and paid. So a community's task is frequently not to invent a new protection but to **force the existing one to work**. Wagina took **seven years** and turned on a clear legal defect — one win against many losses — and the **state is weak and remote**, so a community far from Honiara can struggle to reach the law without help.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and claims, and a chain breaks at its weakest link. A Solomon Islands project needs **your customary land** — so it needs your genuine **FPIC**; it needs its **environmental impact statement and consent**, reviewable by the **Environmental Advisory Committee**; and it can be challenged with **legal aid** and in the **courts**. Every one of those is a link you can grab — and a faked or absent consent is the fatal defect. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year — or seven — on this, work out your real situation:

- **If the company never won your genuine consent, or hid its impacts, that is a fatal defect** — as it was at Wagina.
- **If the law exists but is being ignored, your task is to force it to work** — the consent requirement, the impact statement, the environmental process.
- **If chiefs and landowners are being divided and paid, holding your community united is the whole game** — a divided community loses.
- **If the state is weak and remote and the industry corrupt, expect a long, hard fight and get legal aid** — aim for consent revoked, a licence quashed, delay, and the law made to work.

Read the whole guide once before you move. Two habits run through it: **insist on your right to genuine consent, and force the existing law to work** — the Wagina lever — and **hold your community united against division**, because that is how these fights are lost. That's how Wagina won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Two things must line up. First, the **land and consent**: most land is held under **custom** by its people, so a project needs their genuine **FPIC** — a government licence is not enough. Second, the **environmental process**: a project needs an **environmental impact statement** and **development consent**, reviewable by the **Environmental Advisory Committee**, which can **revoke** a consent. The government grants the licence; the **courts** hear appeals. And the **Public Solicitor** and legal teams help a remote community reach the law. Know which of these you can grab — and your consent is the sharpest.

How a Project Moves — and Where You Jump In

The land and consent. The company must secure your customary land. *Your opening — the strongest:* insist on genuine **FPIC**, and where consent was faked or absent, that is a fatal defect.

The impact statement and consent. The project needs an **EIS** and development consent. *Your opening:* a hidden or defective impact statement, or a consent granted without genuine agreement, is challengeable before the **Environmental Advisory Committee**.

The appeal. *Your opening:* defend the revocation, or challenge a bad consent, in the **courts**, with legal aid.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — the foreign company and its backers. **What it needs from you** — your customary land and your genuine consent: that is your leverage, and a faked consent is its fatal weakness. **What it hid or skipped** — a hidden impact statement, a staged consultation: the defects you can strike.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Environmental Advisory Committee** reviews and can revoke consent. The **courts** hear appeals. The **Public Solicitor** and environmental legal teams provide legal aid. And the Solomons' **customary landowners, community and church networks, environmental organisations, and regional and international allies** are the forces that reach furthest — the combination that won Wagina.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether consent was genuine, whether you can force the law to work, whether your community stays united, and whether you can reach legal aid.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Insist on genuine FPIC / expose faked consent	30–55%	months–yr	low	Consent shown defective
Challenge a hidden/defective impact statement	25–50%	months–yr	low	The environmental process reopened
Environmental Advisory Committee (revoke consent)	30–55%	1–3 yr	low (with aid)	Consent revoked (Wagina)
Legal aid (Public Solicitor / legal team)	(enabling)	throughout	low	The remote community reaches the law
Court (defend revocation / appeal)	30–55%	1–3 yr	low–mod	Revocation upheld; bad consent quashed
Hold the community united	(enabling)	throughout	low	Division defeated; consent held firm
Everything together (faked consent, united, legal aid)	40–60%	years	mod	Consent revoked; project stopped
Everything together (corruption, division, no aid)	15–40%	years	mod	Delayed; contested; one win among losses

The lever that moves the needle most is **genuine consent — exposing a faked or absent FPIC** — pressed through the Environmental Advisory Committee with legal aid, and held by a united community. Wagina shows the ceiling (a bauxite mine's consent revoked, the appeal dismissed) and the honest floor (seven years, one win against many losses, non-enforcement and corruption). So aim for consent revoked, a licence quashed, delay, and the law made to work — and hold your community together.

*On cost: insisting on consent and documenting are cheap, and the **Public Solicitor** and environmental legal teams provide legal aid that lets a remote community reach the law. The great danger isn't cost — it's division and non-enforcement, so hold your community united and aim your energy at forcing the existing law to work.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this faked consent, this hidden impact statement, this customary land — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the foreign company, and its backers.
- 2. Whose land is it on, and what does it touch?** Establish that it's your **customary land** — held under custom by your people — and map it over your gardens, forest, rivers, and sea. **Your customary land and your right to genuine consent are your sharpest levers**, and the land and sea are your very life.
- 3. Was your genuine consent ever obtained — or was it faked or absent?** This is the decisive question. A staged meeting, a hidden impact statement, divided chiefs — these are the fatal defects, as at Wagina.
- 4. What stage is it at, and what's the next deadline?** Is the impact statement out (or hidden)? Has development consent been granted (opening the Environmental Advisory Committee and the courts)? These openings are time-bound.
- 5. Is your community united, and who can help you reach the law?** The customary landowners, the chiefs, the church — held united against division; and the **Public Solicitor** and environmental legal teams. Wagina united its people and drew legal aid.

What this looks like in real life. A logging or mining company arrives with a government licence but never truly won the community's consent, and hides its impacts. The five questions yield: a foreign company and its backers; your customary land and livelihoods at stake (your levers); a consent that was faked or absent (the fatal defect); an impact statement or consent to challenge; and a community to unite and legal aid to reach. That's the Wagina pattern — insist on genuine consent, expose the defect, and force the law to work with legal aid.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Wagina the decisive proof was that consent was never genuine and the impact statement was hidden. Build it in three layers.

Layer one: the consent and the paper trail. Document how **consent was faked or absent** — the staged meeting, the divided or paid chiefs, the people never truly asked — and get the licence, the **environmental impact statement** (or prove it was hidden from you), and the development consent. This is the heart of a Solomon Islands case.

Layer two: the ground truth. Dated, located photographs and video of your land, forest, rivers, and sea, and the testimony of the landowners and community. Show what the island's life is, and what the project would destroy.

Layer three: the map of customary land and harm. Lay the project over your customary land and your land-and-sea livelihoods, so your ownership and the harm are undeniable. Walking into the Environmental Advisory Committee or the courts — with legal aid, the faked consent exposed, and that map — is what

makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Proof that consent was faked or absent** — the staged meeting, the divided chiefs, the people never asked.
- **The licence, the environmental impact statement (or proof it was hidden), the development consent** — from the government and the company.
- **Proof of customary ownership and use** — your land, gardens, forest, rivers, and sea.
- **The land-and-harm map** — your customary land and livelihoods, laid over the project.
- **Named testimony** — of the landowners and community, held united.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a united community insisting on its consent gives you power — the Wagina model. Build in four moves.

Unite the customary landowners — against division. The company's central tactic is to **divide and pay** chiefs and landowners, and to manufacture "consent." Wagina's power was a community that held together. Decide collectively, keep the landowners united, and expose any faked or bought consent — because a divided community loses.

Insist on genuine consent — the decisive lever. Make your **FPIC** the heart of the fight: the company needs your genuine agreement, and a faked or absent consent is a fatal defect. Refuse the staged meeting, and insist the real community be truly asked.

Reach legal aid early. A remote community cannot reach the law alone. Reach the **Public Solicitor's office** and environmental legal teams, who provide the legal aid that let Wagina bring its case — they are how a small island reaches the Environmental Advisory Committee and the courts.

Build to last, and draw allies. Solomon fights run for years — Wagina took seven. Build clear roles, a secure archive, an inclusive way to decide together, a plan for the toll — and draw the community and church networks, environmental organisations, and regional and international allies that amplify a remote community's stand.

STEP 4: LEGAL CHALLENGES, CONSENT & THE ENVIRONMENTAL PROCESS

The Solomon Islands' sharpest lever is genuine consent, pressed through the environmental process with legal aid, and forcing the existing law to work.

Genuine Consent — the Fatal Defect

The route that won Wagina: insist on your right to **genuine, free, prior, and informed consent** over your customary land, and where the company **faked or skipped it** — a staged meeting, divided chiefs, a community never truly asked — that is a **fatal defect**. A government licence cannot cure the absence of the landowners' real agreement. This is the single most powerful thing a Solomon Islands community holds.

The Impact Statement and the Environmental Advisory Committee

A project needs an **environmental impact statement** and development consent. Where the impact statement was **hidden** from the affected people, or the consent granted without genuine agreement, bring the case to the **Environmental Advisory Committee**, which **can revoke the consent** — as it did at Wagina, for the first time in the nation's history. This is a real, proven route.

Legal Aid and the Courts

Reach the **Public Solicitor** and environmental legal teams for **legal aid**, and defend a revocation — or challenge a bad consent — in the **courts**, which dismissed the company's appeal at Wagina. Legal aid is what lets a remote community reach and use the law.

The Honest Limits

Straight talk: genuine consent and the environmental process are powerful, but the central problem is **non-enforcement and corruption** — faked consent, divided chiefs, a weak and remote state — and Wagina was a hard, seven-year win, one among many losses. So use the strong tools — genuine consent, the impact statement, the Environmental Advisory Committee, legal aid, the courts — hold your community united, force the existing law to work, and count consent revoked, a licence quashed, delay, and the law enforced as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Faked consent becomes a fatal defect. Not "we don't want the mine" but *"the company never won our genuine consent — a fatal defect that voids its right to our land,"* as at Wagina.

A hidden impact statement becomes a revocation. *"The company hid its environmental impact statement from us — the Environmental Advisory Committee can revoke the consent."*

Customary land becomes a veto. *"This is our customary land, held under custom — a government licence cannot override our genuine agreement."*

Division becomes exposure. *"The 'consent' was bought from divided chiefs — the true community never agreed."*

Match it to the venue: the faked consent and hidden impact statement to the Environmental Advisory Committee; the customary-land right and the appeal to the courts; the division to your united community and the public; the harm to allies and the media.

STEP 5: MEDIA STRATEGY

In the Solomon Islands, national and international attention amplifies a remote community's stand and pressures a weak state and a foreign company. Community and church networks and regional allies make the media front central.

Lead with the land, the consent, and the livelihoods, not procedure. Not "the impact statement was deficient" but "a foreign company set to swallow sixty percent of our island — land, rivers, and sea we live on — without our genuine consent." Use your strongest material: the faked consent exposed, dated photographs, and the community's united voice.

Work several audiences at once. National press pressures the state; regional and international networks and environmental organisations reach the foreign company and its backers, where a remote community's stand gains weight. Make it easy: captioned photos, accurate summaries, a map, careful testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people and unity — hold the community together, protect those pressured, and let the landowners lead their own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the government / company).

Subject: Request for the licence, impact statement, and consent — [project].

"We, the community of [place], request the licence, the environmental impact statement, and the development consent for [project] on our customary land at [location]. [Contact.]"

8B — Asserting genuine consent / refusing a faked one.

Subject: Our consent has not been given — [project].

"We, the customary landowners of [place], have not given our free, prior, and informed consent to [project]. Any 'consent' obtained from [a staged meeting / divided chiefs] is not the genuine agreement of our community. [Contact.]"

8C — To the Environmental Advisory Committee.

Subject: Objection / request to revoke consent — [project].

"We, the community of [place], ask the Committee to revoke the development consent for [project]: [the company never obtained our genuine consent; it hid its impact statement from us]. [Attach evidence.]"

8D — To the Public Solicitor / a legal team (legal aid).

Subject: Request for legal aid — [project].

"Our community faces [project] on our customary land, without our genuine consent, with the impact statement hidden. We ask for your legal aid to bring our case to the Environmental Advisory Committee, as at Wagina. [Contact and evidence summary.]"

8E — Court (defending a revocation / appeal).

Subject: [Project] — appeal / defence of revocation.

"We instruct you to [defend the revocation of / challenge] the consent for [project], on the grounds that [our genuine consent was never obtained / the impact statement was hidden]. [Attach the record and our evidence.]"

8F — To the foreign company / backers.

Subject: Legal and reputational risk in [project].

"We are the community affected by [project] at [location], on our customary land. You never obtained our genuine consent, and the consent faces revocation and legal challenge. As at Wagina, this carries real legal and reputational risk. [Contact and evidence summary.]"

8G — Letter to the press (national and international).

Subject: [Community] moves to protect its island from [project].

"For generations the people of [place] have lived from [our land and sea]. Now [project] threatens to swallow it — without our genuine consent. We can provide the evidence, photographs, a map and interviews. [Contact.]"

8H — Uniting the community.

Subject: Our land, our consent — let's stand as one.

"[Project] threatens our customary land. The company needs our genuine consent — and cannot have it if we stand united. At Wagina, a united island had a mine's consent revoked. Let's decide together, refuse a faked consent, and hold firm. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish it's your customary land, and unite the landowners against division (8H).** Your land and your unity are your foundation.
2. **Refuse and expose any faked consent, and assert your genuine FPIC (8B).**
3. **Document how consent was faked or absent, and whether the impact statement was hidden.**
4. **Reach the Public Solicitor or a legal team for legal aid (8D).**
5. **Bring the case to the Environmental Advisory Committee to revoke the consent (8C).**
6. **Draw allies and go public (8G) — and hold the community united throughout.**

Even lean, those six insist on genuine consent, expose the defect, and force the law to work — the Wagina template.

WHEN THE SYSTEM IS TILTED

The Solomon Islands' tools are real, but non-enforcement and corruption tilt the field, and you must plan for it.

When they divide and pay your chiefs. This is the central danger. Hold the landowners united, decide collectively, and expose any bought or faked consent — a divided community loses.

When the law is ignored, not missing. Your task is to **force the existing law to work** — the consent requirement, the impact statement, the environmental process — by insisting, with legal aid, that they be honoured, as Wagina did.

When the state is weak and remote. Reach the Public Solicitor and legal teams for legal aid, and draw regional and international allies, to reach the law from far away.

When it's one win among losses. Wagina was a hard, rare victory. Learn from it, keep your community united, and fight the next with the same insistence on genuine consent.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

The Solomon Islands has serious, documented corruption in the logging and mining industries, so this matters.

How to spot it. Licences on a single staged meeting; consent faked; chiefs divided and paid; impact statements hidden; benefits to the connected while communities lose their land and sea.

Who's supposed to guard against it. The **Auditor-General** and the anti-corruption bodies examine public money and conduct. The **Environmental Advisory Committee** and the **courts** can revoke or quash a tainted consent. The **Public Solicitor** provides legal aid. And the Solomons' **civil society, churches, and press**, with regional and international watchdogs, have exposed the captured logging and mining trade.

How to fight it safely. Document precisely and factually — the faked consent, the hidden impact statement, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Auditor-General, the anti-corruption bodies, the Environmental Advisory Committee, the courts, and trusted journalists rather than making accusations you can't back. Protect those pressured, and pair the exposure with the consent fight.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. Your customary land and the faked-consent proof are the foundation; genuine consent aims the case; a united community is the muscle; the Environmental Advisory Committee, legal aid, and the courts press it; allies and the media amplify it. Together they multiply. One at a time, they stall — and hold the community united throughout.

Early on (weeks–months): establish your customary land; unite the landowners; refuse and expose any faked consent; document the defect and any hidden impact statement; reach the Public Solicitor for legal aid.

In the thick of it (months–years): bring the case to the Environmental Advisory Committee to revoke the consent; defend the revocation or challenge a bad consent in the courts; draw allies; open the media front.

The long haul (years): carry the case and the appeals; hold the community united against division; force the existing law to work; hold the line for consent revoked, a licence quashed, delay, and the law enforced.

FINAL ASSESSMENT

Stopping a destructive project in the Solomon Islands can be done — a remote island of two thousand people had a foreign bauxite mine's consent revoked, and the appeal dismissed, because the company never won its genuine consent. Hold both truths. The Solomons' distinctive power is real: most land is held under custom by its people, so a project needs their genuine, free, prior, and informed consent — and a faked or absent consent is a fatal defect, as Wagina proved. And the constraints are real: the central problem is non-enforcement and the corruption of the logging and mining industries — faked consent,

divided chiefs, a weak and remote state — and Wagina was a hard, seven-year win, one among many losses.

Here's the discipline that wins. Start from your land: establish that it's your customary land, unite the landowners against the division and payment the company will attempt, and insist on your right to **genuine consent** — because the company cannot lawfully proceed on a government licence alone; it needs your real agreement. Where consent was faked or the impact statement hidden, expose that fatal defect and bring the case to the **Environmental Advisory Committee** to revoke the consent, with the legal aid of the **Public Solicitor** and environmental legal teams that lets a remote community reach the law. Defend the revocation in the courts, draw your allies, and above all hold your community united, because division is how these fights are lost. Aim your energy not at wishing for better laws but at **forcing the existing law to work**. Count consent revoked, a licence quashed, delay, and the law enforced as wins. That's what Wagina did — customary land, genuine consent, legal aid, and a united island together. So can you.